



Order under Section 21.2 of the Statutory Powers Procedure Act and the Residential Tenancies Act, 2006

Citation: Creek Asset Management v Polsinelli, 2025 ONLTB 95092

Date: 2025-12-30 **File Number:**
LTB-L-080981-25-RV

In the matter of: UPPER LEVEL, 5128 DUNDAS ST W ETOBICOKE
ON M9A1C2

Between: Creek Asset Management Landlord

And

Tomassino Polsinelli Tenant
Anastasia Ramai

Review Order

Creek Asset Management (the 'Landlord') applied for an order to terminate the tenancy and evict Tomassino Polsinelli and Anastasia Ramai (the 'Tenant') because the Tenant did not pay the rent that the Tenant owes.

This application was resolved by order LTB-L-080981-25 issued on December 15, 2025.

On December 17, 2025, the Tenant requested a review of the order.

A preliminary review of the review request was completed without a hearing.

Determinations:

1. On the basis of the submissions made in the request, I am not satisfied that there is a serious error in the order or that a serious error occurred in the proceedings or that the Tenant was not reasonably able to participate in the proceeding.
2. The Tenant alleges that they were not reasonably able to participate in the proceeding.
3. The Tenant states that they were not able to attend the hearing because of "technical issues" without further description. I am not satisfied that the Tenant has provided sufficient detail to explain why they were unable to attend the hearing. As a result, the request to review on this ground must be denied.

4. The Tenant also alleges that the order contains serious errors, however, these alleged errors relate to arguments the Tenant would have made had they attended the hearing rather than to errors on the face of the order. There is no indication that the Member applied improper principles in assessing the evidence introduced in this case or that

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there was insufficient evidence before the Board to support the Member's conclusions. .
As a result, the request to review on this ground must also be denied.

It is ordered that:

1. The request to review order LTB-L-080981-25 issued on December 15, 2025 is denied.
The order is confirmed and remains unchanged.

December 30, 2025

Date Issued

Richard Ferriss

Member, Landlord and Tenant Board

15 Grosvenor Street, Ground Floor
Toronto ON M7A 2G6

If you have any questions about this order, call 416-645-8080 or toll free at 1-888-332-3234.

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